

By Email: speaker@parliament.gov.za

The Honourable Speaker of the National Assembly
Office of the Speaker Parliament of the Republic of South Africa
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3 June 2026

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Your reference:

Our reference: AFR1282

Dear Honourable Speaker

**Re: Correspondence from Mr Wilbur William Matthee dated 2 June 2026 – Case No. 2026-086906
(Western Cape High Court)**

1 Introduction

- 1.1 We act on behalf of AfroCentric Investment Corporation Limited (**AfroCentric**), a JSE-listed company and the holding company of the AfroCentric Group, which includes, *inter alia*, Medscheme Holdings (Pty) Ltd (**Medscheme**) and AfroCentric Health (RF) (Pty) Ltd.
- 1.2 We understand that Mr Wilbur William Matthee has addressed correspondence to the Office of the Speaker, the Secretary to the National Council of Provinces, and the Undersecretary of the National Assembly dated 2 June 2026.
- 1.3 We write to place certain facts on record in the interests of accuracy and to assist the Office of the Speaker in its consideration of Mr Matthee's correspondence.

2 Pending court proceedings

- 2.1 There are presently two sets of proceedings pending between the parties:
- (1) High Court proceedings (Case No. 2026-086906): On 16 April 2026, the Western Cape High Court granted a rule *nisi* operating as an interim interdict restraining Mr Matthee from, *inter alia*, disclosing confidential information, publishing defamatory statements, filing misleading regulatory complaints, demanding payment by threats, and inciting trade union action against AfroCentric. The matter is opposed by Mr Matthee and has been postponed for final determination on the semi-urgent roll on 1 March 2027. The interim interdict remains in force.
 - (2) Labour Court proceedings (Case No. 2026-083299): Mr Matthee has referred employment-related disputes to the Labour Court against AfroCentric Health (RF) (Pty) Ltd and Medscheme Holdings (Pty) Ltd. These proceedings are at the pre-trial stage.
- 2.2 We respectfully draw the attention of the Office of the Speaker to the fact that, in terms of Parliament's own published guidelines on petitions, a petition may not be accepted where it "*concerns a matter pending in a court of law, tribunal, forum, investigative institution or body contemplated within the Constitution or any other law.*"¹

¹ <https://www.parliament.gov.za/petitions>

- 2.3 Both the High Court proceedings and the Labour Court proceedings are pending. The matters raised by Mr Matthee in his correspondence are the subject of active litigation before the courts.

3 The factual position

- 3.1 Without prejudice to AfroCentric's position in the pending proceedings, we record the following for the avoidance of doubt:

- (1) Mr Matthee was employed as a Care Co-ordinator by Medscheme, not by AfroCentric Investment Corporation Limited. He resigned voluntarily on 12 December 2025.
- (2) The interim interdict was not obtained without notice to Mr Matthee. He was informed of the application on the evening of 15 April 2026, was served with the papers the following morning, he in turn served an answering affidavit by email, and confirmed that he was in transit to attend the hearing. He was unable to attend due to financial hardship. The presiding judge adjourned the proceedings specifically to read Mr Matthee's answering affidavit before granting the interim order. For all intents and purposes, Mr Matthee's papers were before the judge.
- (3) Mr Matthee's characterisation of the interim order as a "gag order" designed to suppress whistleblowing is denied. The interdict restrains specific categories of threatened unlawful conduct, including the conditional disclosure of confidential patient information and the demand for R7,307,642.72 by threats. It does not prevent Mr Matthee from pursuing his claims in the Labour Court or from co-operating with any regulatory body. The threatened disclosures do not fall within the scope of the *Protected Disclosures Act, 2000*.
- (4) Mr Matthee has filed complaints with no fewer than eleven regulatory bodies. Not a single one has made a finding in his favour.

- 3.2 Mr Matthee is a self-represented litigant who has made extensive allegations across multiple fora. We do not wish to burden the Office of the Speaker with a detailed rebuttal of each allegation. The full record of the proceedings is before the courts and will be adjudicated in due course.

4 Conclusion

- 4.1 In summary, the matters raised by Mr Matthee in his correspondence to Parliament are the subject of active court proceedings. His allegations have been denied under oath and will be adjudicated by the courts in due course.
- 4.2 AfroCentric respects the constitutional right to petition Parliament and does not seek to prevent Mr Matthee from exercising that right. It does, however, respectfully request that the Office of the Speaker consider the limitations applicable to petitions concerning matters pending before the courts, and that it has regard to the factual position set out above in evaluating the representations made by Mr Matthee.
- 4.3 Should the Office of the Speaker require any further information in connection with Mr Matthee's correspondence, we would be pleased to assist. We can be contacted at the details set out above.

Yours faithfully



Jason Whyte, Director
Frances Barker, Associate
Deneys Reitz Inc